

**UNITED STATES OF AMERICA
BEFORE THE FEDERAL MARITIME COMMISSION**

INTERMODAL MOTOR CARRIERS CONFERENCE,
AMERICAN TRUCKING ASSOCIATIONS, INC.

Complainant,

v.

OCEAN CARRIER EQUIPMENT MANAGEMENT
ASSOCIATION, INC., CONSOLIDATED CHASSIS
MANAGEMENT, LLC, CMA CGM S.A., COSCO
SHIPPING LINES CO. LTD., EVERGREEN LINE
JOINT SERVICE AGREEMENT, FMC NO. 011982,
HAPAG-LLOYD AG, HMM CO. LTD., MAERSK
A/S, MSC MEDITERRANEAN SHIPPING
COMPANY S.A., OCEAN NETWORK EXPRESS
PTE. LTD., WAN HAI LINES LTD., YANG MING
MARINE TRANSPORT CORP., AND ZIM
INTEGRATED SHIPPING SERVICES,

Respondents.

FMC Docket No. 20-14

**JOINT MOTION FOR ENTRY OF STIPULATION
AND ORDER OF CONFIDENTIALITY**

The Parties in the above-captioned Proceeding, Complainant, Intermodal Motor Carriers Conference of the American Trucking Associations, Inc. and Respondents, Ocean Carrier Equipment Management Association, Inc. (“OCEMA”), Consolidated Chassis Management, LLC (“CCM”), CMA CGM S.A. (“CMA”), COSCO Shipping Lines (“COSCO”), Evergreen Line Joint Service Agreement, FMC No. 011982 (“Evergreen”), Hapag-Lloyd AG (“Hapag-Lloyd”), HMM Co. Ltd. (“HMM”), Maersk a/s (“Maersk”), MSC Mediterranean Shipping Company S.A. (“MSC”), Ocean Network Express Pte. Ltd. (“ONE”), Wan Hai Lines Ltd. (“Wan Hai”), Yang Ming Marine Transport Corp. (“Yang Ming”), and Zim Integrated Shipping Services (“Zim”) (collectively “the Parties”) hereby move the Commission to enter the

Stipulation and Order of Confidentiality executed by the Parties and attached hereto as Exhibit

A. The Parties have jointly drafted the attached and agree to be bound by all of the terms contained therein.

WHEREFORE, the Parties request that the Commission grant this motion for entry of the submitted Stipulation and Order of Confidentiality.

Respectfully submitted,

DATED: March 1, 2021

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EXHIBIT A

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STIPULATION & ORDER OF CONFIDENTIALITY

WHEREAS, the above-captioned Federal Maritime Commission proceeding (“Proceeding”) is likely to involve production of trade secrets, valuable commercial information, personal information, business and financial proprietary information, disclosure of which and use for any purpose other than in this Proceeding would cause specific prejudice or harm, such as annoyance, embarrassment, oppression, or undue burden or expense;

IT IS HEREBY STIPULATED AND AGREED, in good faith, by the undersigned counsel for the Parties that the following Order of Confidentiality shall be applicable to this Proceeding and shall govern all hard copy and electronic information, documents, and materials

produced or disclosed in relation to this Proceeding. These materials shall be referred to hereinafter as “Proceeding Material.”

Definition of Confidential Information

1. Each Producing Party shall have the right to designate information or Proceeding Material as “Confidential” when it reveals or reflects

- a. unpublished business, financial, research or marketing data, methods or plans, internal emails, memos, trade secrets, customer information, customer negotiations or operational or technical information;
- b. private or confidential personal information;
- c. other information of a nonpublic nature that a Party reasonably and in good faith believes to be commercially, competitively, or personally sensitive, or proprietary in nature entitled to protection under 46 CFR §502.141(j)(1) of the Rules of Practice and Procedure, or
- d. information that is not publicly-known, that is not in the public domain, or was previously known or in the possession of the Receiving Party, so long as the information was not known or in possession of the Receiving Party under any other obligation to maintain confidentiality or restriction on disclosure.

Definition of Outside Counsel Eyes Only Information

2. Each Producing Party shall have the right to designate information or Proceeding Material as Outside Counsel Eyes Only (“OCEO”) when it qualifies as “Confidential” as defined above and whose disclosure to anyone other than outside counsel has a substantial probability of jeopardizing the Parties’ competitive business interests or the competitive or privacy interests of the clients or individual Party in this Proceeding.

3. Information or Proceeding Material designated as “Confidential” or “Confidential OCEO” shall be referred to hereinafter as "Confidential Information."

General Provisions

4. All Parties designating Confidential Information and/or Confidential OCEO shall have a bona fide need for confidential treatment of information including trade secret or other confidential research, development, or commercial information pursuant to 46 CFR §502.141(j)(1)(vii).

5. The distribution and dissemination of any information designated as Confidential Information is limited to the following persons:

- a. counsel and co-counsel of record for any Party in this Proceeding including necessary paralegal, secretarial, and clerical personnel assisting counsel;
- b. any officer, manager, Board Member, or employee of either Party who may be consulted regarding this Proceeding;
- c. consultants or experts who are not employed by, or otherwise affiliated with, a Party in this Proceeding, and who are retained by a Party or its counsel to assist in the preparation of discovery, and/or this Proceeding;
- d. vendors retained by any of the Parties for the purpose of assisting with discovery, litigation support personnel, stenographers, and clerical employees whose duties and responsibilities require access to such materials; and
- e. Judge Wirth, the Federal Maritime Commission staff and personnel of the Commission.

6. The distribution and limitation of any information designated Confidential OCEO is limited to the following persons:

- a. outside counsel and co-counsel of record for any Party in this Proceeding including necessary paralegal, secretarial, and clerical personnel assisting counsel;
- b. consultants or experts who are not employed by, or otherwise affiliated with, a Party in this Proceeding, and who are retained by a Party or its counsel to assist in the preparation of discovery, and/or this Proceeding;
- c. vendors retained by any of the Parties for the purpose of assisting with discovery, litigation support personnel, stenographers, and clerical employees whose duties and responsibilities require access to such materials; and
- d. Judge Wirth, the Federal Maritime Commission staff and personnel of the Commission.

7. All persons authorized to receive and view Confidential Information shall take reasonable steps to secure any Confidential Information, and shall limit access to Confidential Information to those persons identified above in Paragraphs 5 or 6.

8. Persons identified in Paragraphs 5(c), (d) and 6(b), (c) shall read, agree to the terms of this Order of Confidentiality, and sign a Certification form annexed at Appendix A.

9. A Party shall immediately notify any inadvertent disclosure of Confidential Information in breach of this Order of Confidentiality, to the ALJ and the Producing Party counsel. After which, the Party shall take necessary steps to prevent further disclosures in breach of any of the provisions of this Order of Confidentiality.

10. The Parties shall either destroy all materials designated Confidential Information or return them to the original Producing Party at the Producing Party's expense within forty-five

(45) days of the final conclusion of this Proceeding either by settlement or final judgment, including exhaustion of all appeals.

Privileged and Protected Material

11. The Parties preserve any and all privileges and exemptions including but not limited to attorney-client privilege and work product privilege, which apply to any and all Proceeding Material.

12. Inadvertent disclosure shall not be deemed as a waiver of any privilege or exemption in accordance with the provisions on inadvertent disclosure in the Federal Rules of Civil Procedure.

13. Within forty-eight (48) hours of the receipt of a written notice from a Party claiming inadvertent disclosure of privileged material, the Receiving Party shall return immediately any Proceeding Material deemed privileged by such letter, and the Receiving Party shall also delete and/or destroy any copies of such privileged or protected materials inadvertently produced by the Producing Party identified in such letter, subject to and without waiving the Receiving Party's rights to challenge the disclosures as inadvertent or the designation as confidential or privileged in accordance with the provisions on inadvertent disclosure in the Federal Rules of Civil Procedure.

Use of Confidential Information in Commission Hearings

14. Confidential Information disclosed to the Commission and ALJ in papers including exhibits, shall be labeled in accordance with 46 CFR §502.5.

15. The provisions of this Order of Confidentiality shall govern the Proceeding, including discovery, and shall not affect the conduct of the ALJ. The ALJ shall order an

appropriate procedure for the use of the Confidential Information at or during the course of the Proceeding pursuant to 46 CFR §502.141(j)(1).

Designating Protected Material

16. Documents containing Confidential Information as defined in Paragraphs 7, 8, and 9 shall be marked with the word “CONFIDENTIAL” or “CONFIDENTIAL OCEO” on each page of that document that contains such information.

17. Where a Party produces Proceeding Material in electronic form, it may make the confidentiality designation by a letter which identifies the Bates Numbers of the electronic documents which comprise Confidential Information.

18. Depositions may be designated as Confidential Information by (i) stating orally on the record that the information is Confidential Information on the day the testimony is given, or (ii) sending written notice designating testimony as Confidential Information within thirty (30) days after receipt of the official deposition transcript or deposition copy.

19. Any Party that designates information or items for protection under this Order of Confidentiality must take care to limit any such designation to specific material that qualifies.

20. Once the Receiving Party has notice that the Producing Party has designated Proceeding Material as Confidential Information, the Receiving Party shall treat the designated materials as Confidential Information in accordance with this Order of Confidentiality regardless of how much time has passed since the Confidential Information was first disclosed or produced.

Challenging Confidential Designations

21. Any Party may challenge a designation of “Confidential” or “Confidential OCEO” at any time that is consistent with the Commission’s Scheduling Order.

22. The Party challenging the designation must object with particularity and give a complete explanation by letter to the Producing Party Counsel.

23. If the Parties are unable to resolve the challenge, then the Producing Party may move the ALJ for a protective order or the objecting party Counsel may move the ALJ to challenge the designation. The Proceeding Material, however, shall continue to be deemed Confidential Information until the ALJ rules on any such motion.

24. If a Producing Party fails to seek a protective order to uphold its designation, any disputed Proceeding Material will lose its Confidential designation thirty (30) days after the date of the letter referred to in Paragraph 21.

Reservation of Rights

25. The Order of Confidentiality shall not prevent any Party from disclosing Confidential Information to any person as it deems appropriate, to adhere to the Commission's guidelines for a just and speedy Proceeding. Any such disclosure shall not be deemed a violation or waiver of the Party's obligations under this Order of Confidentiality.

26. The ALJ shall retain jurisdiction of the Parties, even after termination of this Proceeding, regarding any dispute between them on the improper use of Confidential information disclosed under protection of this Order of Confidentiality.

27. Disclosure of Confidential Information Pursuant to Legal Process. If Confidential Information in the possession of the Receiving Party is subpoenaed or sought pursuant to discovery or other legal process, the Party to whom the request has been made or an order directed shall promptly give written notice of such request to the Party that produced the information. No Party shall disclose another Party's Confidential Information without first giving that Party notice for an opportunity to seek an order governing disclosure of the requested

information. The Party that produced the information shall have the sole burden of defending against such request.

DATED:

APPENDIX A

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DOCKET NO. 20-14

**CERTIFICATION TO BE BOUND BY STIPULATION
AND ORDER OF CONFIDENTIALITY**

I, _____ state that

1. My current home address is
2. My present occupation and/or job description is
3. My present employer is
4. The principal address of my employer is
5. I have carefully read and understand the provisions of the Stipulation and Order of Confidentiality executed by the Parties in the above-referenced Proceeding, and I will comply with all provisions of the Stipulation and Order of Confidentiality.

6. I will hold in confidence and not disclose to anyone not qualified under Paragraphs 5 or 6 of the Stipulation and Order of Confidentiality any documents and/or information designated Confidential Information.
7. I will limit use of Confidential Information disclosed to me solely for the purposes of this Proceeding.
8. At the conclusion of the above-referenced Proceeding, I will return all Confidential Information, including any summaries, abstracts, and indices thereof, that come into my possession or destroy all such Confidential Information.

I declare under penalty of perjury that the forgoing is true and correct.

DATE:

Signature

Printed Name